



CHAPTER xci.

An Act to change the name of the Crystal Palace District Gas Company to the South Suburban Gas Company and to confer further powers on the Company.

A.D. 1904.

[22nd July 1904.]

WHEREAS the Crystal Palace District Gas Company (in this Act called "the Company") were incorporated by the Crystal Palace District Gas Company's Act 1858 (in this Act referred to as "the Act of 1858") and were authorised to supply with gas certain parishes and parts of parishes now in the counties of London Surrey and Kent forming a district in the neighbourhood of the Crystal Palace :

21 & 22 Vict.
c. cxxix.

And whereas by section 17 of the Crystal Palace District Gas Act 1893 (in this Act called "the Act of 1893") the dividend payable by the Company on their ordinary stock is subject to a reduction or increase below or above the standard dividend of five per centum payable by the Company on such stock in accordance with an increase or reduction above or below the standard price for gas charged by the Company in any year :

55 & 57 Vict.
c. lxxviii.

And whereas it is expedient that the dividend of the Company should be dependent upon the price of gas in any half year instead of in any year as provided by the said section 17 of the Act of 1893 :

And whereas it is expedient that the name of the Company should be changed as herein-after provided :

And whereas it is expedient that further powers should be conferred upon the Company with reference to the sale of unissued ordinary stock and the offer of such stock for sale to the consumers of gas supplied by the Company and to persons in the employ of the Company :

A.D. 1904.

And whereas by reason of the system of the Company under which persons in their employ receive by way of bonus a share in the profits of the Company many of such persons hold ordinary stock in the capital of the Company and it is expedient that provision should be made for the election by such persons of a director or directors to take part in the management of the affairs of the Company :

And whereas it is expedient to make provision with respect to the transfer of stock of the Company held by persons in their employ and the repayment of moneys left in the hands of the Company by such persons when such stock or moneys are of small amount :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the South Suburban Gas Act 1904.

Standard
price and
sliding scale.

2.—(1) The following provisions shall apply and have effect in lieu of the provisions contained in section 17 of the Act of 1893 (that is to say) :—

The standard price to be charged by the Company for gas supplied by them shall be three shillings and twopence per thousand cubic feet subject to the provisions hereinafter contained (that is to say) :—

The Company may increase or reduce the price charged by them for gas above or below such standard price subject to a reduction or increase in the standard dividend payable by the Company on their ordinary stock as follows :—

In respect of any half year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard dividend by one shilling and threepence on every one hundred pounds of

ordinary paid-up capital and so in proportion for any fraction of one hundred pounds : A.D. 1904.

And in respect of any half year during the whole of which the price charged by the Company shall have been one penny or more below two shillings and tenpence per thousand cubic feet the dividend payable by the Company may in respect of each penny by which the price shall have been so reduced be increased above the standard dividend by one shilling and threepence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds :

Provided that if in any half year the dividend payable shall be a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

(2) Section 17 (Standard price under sliding scale) of the Act of 1893 shall be repealed as from the first day of January one thousand nine hundred and five.

3. As from the first day of August one thousand nine hundred and four the name of the Company shall be "The South Suburban Gas Company" and the Company shall have a common seal and the provisions of Part IV. (Change of name) of the Companies Clauses Act 1863 shall apply accordingly. Change of name of Company.

4.—(1) Notwithstanding anything contained in the Act of 1893 when any unissued ordinary stock of the Company is to be issued and whether the same be at a premium or not the Company before offering the same to the holders of any other stock of the Company or for sale by public auction or tender may (with the approval of the Board of Trade to be signified in writing under the hand of an assistant secretary of that Board) offer to all the gas consumers and persons in the employ of the Company the stock so to be issued at as near as may be the average market price of such stock in the month immediately preceding such offer (provided that in no case shall the price at which such stock shall be offered be lower than three per centum below such market price) and if and so far as the stock so issued is not taken by such persons the Company before offering the Sale of un-issued stock.

A.D. 1904. — same to the holders of any other stock in the Company shall offer the same at the same reserve price for sale by public auction or by tender in such manner and at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that no single lot shall at any such offer or sale comprise more than one hundred pounds nominal value of such ordinary stock and notice of the amount of such reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company.

(2) To ascertain the average market price of the stock in the month immediately preceding an offer to consumers and employees the mean daily prices recorded in the official published list of the London Stock Exchange shall be taken for the last four completed weeks.

Scheme may be made for representation of employees in the management of the Company.

5.—(1) At any time after the total investments of the employees of the Company in the ordinary stock of the Company shall exceed the nominal amount of ten thousand pounds of such stock the directors of the Company may as and when they deem expedient prepare a scheme for the purpose of enabling employees holding ordinary stock of the Company to elect one or more of their number but not exceeding three to be a director or directors of the Company. The number of directors elected under the provisions of this section shall be in addition to the number of directors of the Company referred to in sections 27 and 28 of the Act of 1858 and a quorum of a meeting of the directors shall continue to be three directors qualified as provided by section 27 of that Act.

(2) The scheme shall be submitted to an extraordinary meeting of the Company duly called with notice of the business to be considered thereat and the meeting may adopt the scheme either without alteration or with such alterations (not being inconsistent with the provisions of this Act) as the directors may assent to.

(3) The scheme so adopted shall be submitted for the approval of the Board of Trade and that Board may consider the same and may either approve the same without alteration or

may suggest any alterations therein or may disapprove the same and if the directors assent to the alterations (if any) so suggested the Board of Trade may approve the scheme as altered. A.D. 1904.

(4) The scheme when approved shall be published in the London Gazette and (subject as herein-after provided) shall for the period of three years and no longer from the date of such publication have effect. Provided that if at any time during that period the amount of the investment of the employees in the stock of the Company should fall below the nominal amount of ten thousand pounds the scheme shall cease to be in force.

(5) On the cesser of such scheme and subject to the provisions of this Act and to the like submission adoption and approval a new scheme may at any time be adopted for any period that may be in that scheme prescribed and so from time to time.

(6) The qualification of an employees' director shall be fixed by the scheme for the time being subject to the following limitations. The employees' director shall have been not less than seven years in the constant employ of the Company and shall have held for not less than twelve months prior to the date of election and shall continue to hold not less than one hundred pounds nominal value of the ordinary stock of the Company.

(7) The fees to be paid to an employees' director for his attendance at the board shall be fixed by the scheme. The fees shall bear some proportion (to be fixed by the scheme) to the amount of the qualification not being less than his ordinary day's pay nor more than four times that amount.

(8) The scale and method of voting for and the mode of election of employees' directors shall be settled by the scheme and may be varied by successive schemes from time to time.

(9) For the purpose of this section--

The expressions "employees of the Company" and "employees" respectively mean persons in the employ and holding stock in the capital of the Company;

The expression "employees' director" means a director elected by the employees.

6. Subject to the regulations set forth in the Schedule to this Act any person in the employment of the Company and holding in his own right any ordinary stock of the Company or having any money left in the hands of the Company on account of any share in the profits of the Company (in this Act referred to as "deposits") may if he be of the age of sixteen years or upwards nominate any person to transfer the said stock and to receive any such deposits at the death of the person so nominating and

Persons in the employ of the Company may nominate others to transfer stock &c. held by such persons.

A.D. 1904. in the event of any such person holding such stock or having such deposits dying without having made a nomination which shall be in force at his death the directors of the Company may register such stock and pay or distribute such deposits.

Costs of Act. **7.** All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The **SCHEDULE** referred to in the foregoing Act.

REGULATIONS AS TO NOMINATIONS BY PERSONS IN THE EMPLOY OF
THE COMPANY TO TRANSFER STOCK &C.

AND AS TO PAYMENT OF DEPOSITS OF DECEASED DEPOSITORS.

(1) In these regulations "the Company" means the South Suburban Gas Company "directors" means the directors of the Company "stock" means ordinary stock of the Company "appointor" means the person entitled to make a nomination under the provisions of section 6 of the South Suburban Gas Act 1904 the marginal note whereof is "Persons in the employ of the Company may nominate others to transfer stock &c. held by such persons" and "deposits" has the meaning given thereto in the same section.

(2) Every such nomination shall be in writing and shall be signed by the appointor in the presence of a witness and shall be sent by post or otherwise to the secretary to the Company during the lifetime of the appointor The receipt of every such nomination shall be acknowledged by the secretary to the Company.

(3) Every such nomination shall be in the form prescribed by the directors of the Company which may be obtained from the secretary to the Company.

(4) Every such nomination shall be registered by the secretary to the Company.

(5) Any such nomination may be revoked by the appointor by writing under his hand signed in the presence of a witness.

Any such revocation shall be sent by post or otherwise to the secretary to the Company during the lifetime of the appointor and shall be registered by the secretary to the Company in like manner as in the case of a nomination The receipt of every such revocation shall be acknowledged by the secretary to the Company.

(6) A nomination may relate to the whole of the stock and deposits standing in the name of an appointor or to part only of such stock and deposits.

(7) Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which an appointor is entitled at the time

of his decease but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination. A.D. 1904.
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(8) A nomination may be in favour of one person or of several persons and in the latter case may direct that the stock shall be registered in the name of and that the deposits shall be paid to one or more of the persons named in the nomination or that the persons named in such nomination may be registered as owners of the stock and may take the deposits or any of them respectively in specified shares or may give directions to both effects.

(9) No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

(10) Where the value of the stock and deposits belonging to an appointor at the time of his decease does not exceed in the whole the sum of one hundred pounds the directors shall subject to the provisions of these regulations as to duty transfer such stock and pay such deposits to the persons named in the nomination made by the appointor and in force at the time of his death according to the directions of such nomination and the receipt of any person so named shall be a good discharge to the directors for the sum so paid notwithstanding such person has not attained the age of twenty-one years if such person has attained the age of sixteen years.

(11) If upon the decease of an appointor the value of the stock and deposits belonging to him or to his estate exceed one hundred pounds the nomination shall take effect subject to the provisions of these regulations as to duty as regards any stock or deposits to which the same relates not exceeding one hundred pounds in like manner as if it were a will of the deceased appointor duly executed but shall not take effect in any other manner and a nomination shall not in such case be deemed void because the appointor was a minor at the time such nomination was made.

In any such case as last aforesaid the directors may subject to the provisions of this regulation transfer any stock and pay any deposits to which a nomination relates not exceeding in the aggregate one hundred pounds according to the directions of such nomination notwithstanding the production of probate of the will of a deceased appointor or letters of administration to his estate.

(12) Where any person nominated to receive any stock or deposits on the death of an appointor is an infant under the age of sixteen years and it is proved to the satisfaction of the directors that funds are urgently needed for the maintenance education or benefit of such infant the directors may transfer or pay the stock or deposits mentioned in the nomination or any part thereof to any person who may satisfy the directors that he will apply such money for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the directors for the amount so paid.

(13) The directors may require proof to their satisfaction of the decease of an appointor.

(14) Where the value of the stock and deposits belonging to an appointor at the time of his decease do not together exceed one hundred pounds exclusive of interest and probate of the will of such appointor or letters of administration to his estate and effects is not or are not produced

A.D. 1904. — within such time as the directors think reasonable if such appointor has made no nomination and so far as any nomination does not extend the directors may subject to the provisions of these regulations as to duty without requiring probate of the will or letters of administration of the estate and effects of the deceased appointor in their discretion register such stock in the name of and pay or distribute the amount so due as aforesaid to or among any of the persons herein-after described or indicated (that is to say) :—

- (i) Any person who has paid the funeral expenses of the appointor :
- (ii) The widow of the appointor :
- (iii) The persons entitled to the effects of the appointor according to the Statutes of Distribution :
- (iv) Any person undertaking to maintain the children of the appointor :
- (v) The Solicitor to the Treasury if the appointor being illegitimate dies intestate leaving no widow or issue.

(15) If the total property of any deceased appointor exceeds one hundred pounds after deduction of debts and funeral expenses any stock or deposits which may under these regulations be transferred or paid otherwise than to the legal personal representative of the appointor shall notwithstanding such transfer or payment be for the purposes of estate duty treated as passing under the will or intestacy of the deceased appointor.

The directors shall before transferring or paying any stock or deposits standing to the credit of a deceased appointor to anyone but the legal personal representative of such deceased appointor require a declaration by the claimant or one of the claimants or other the person to whom the directors see fit to make such payment or to transfer such stock that the total estate of the deceased appointor including the amount of such moneys or stock does not after deduction of debts and funeral expenses exceed the value of one hundred pounds.

In every such case as aforesaid where the total estate of the deceased appointor including such stock and deposits but after deduction of debts and funeral expenses exceeds one hundred pounds the directors shall before making any transfer or payment as aforesaid to any person other than the legal personal representative of the deceased appointor require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the succession or legacy duty payable in respect of such stock or deposits or of a certificate stating that no succession or legacy duty is payable.

The receipt of any of the persons mentioned in these regulations shall be a good discharge to the directors for the sum paid and any such receipt may be signed by any widow or next-of-kin above the age of sixteen years notwithstanding that she or he has not attained the age of twenty-one years.

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